AUTHORIZATION			
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REVISION HISTORY				
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01.00		Original policy	Natan Blanks	March 17, 2020
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Use of PHI

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1 Minimum Necessary Standard

1.1 HIPAA Privacy Rule Language

"When using or disclosing protected health information or when requesting protected health information from another covered entity or business associate, a covered entity…must make reasonable efforts to limit protected health information to the minimum necessary to accomplish the intended purpose of the use, disclosure or request." 45 C.F.R. § 164.502(b).

"A covered entity must identify: (A) those persons or classes of persons, as appropriate, in its workforce who need access to protected health information to carry out their duties; and (B) For each such person or class of persons, the category or categories of protected health information to which access is needed and any conditions appropriate to such access…A covered entity must make reasonable efforts to limit the access of such persons or classes…to protected health information[for which access is necessary].

"For any type of disclosure it makes on a routine or recurring basis, a covered entity must implement policies and procedures (which may be standard protocols) that limit the protected health information disclosed to the amount reasonably necessary to achieve the purpose of the disclosure.

For all other disclosures, a covered entity must: (A) develop criteria designed to limit the protected health information disclosed to the information reasonably necessary to accomplish the purpose for which disclosure is sought; and (B) review requests for disclosure on an individual basis in accordance with such criteria."

"A covered entity must limit any request for protected health information to that which is reasonably necessary to accomplish the purpose for which the request is made, when requesting such information from other covered entities.

For a request that is made on a routine and recurring basis, a covered entity must implement policies and procedures (which may be standard protocols) that limit the protected health information requested to the amount reasonably necessary to accomplish the purpose for which the request is made.

For all other requests, a covered entity must: (A) development criteria designed to limit the request for protected health information to the information reasonably necessary to accomplish the purpose for which the request is made; and (B) review requests for disclosure on an individual basis in accordance with such criteria." 45 CFR § 164.514(d).

1.2 Purpose Statement

PeriGen will use reasonable efforts to limit any authorized use or disclosure of PHI or ePHI to the least amount necessary (the "minimum necessary") to accomplish the intended purpose of the disclosure. This policy encompasses PHI in any format, such as oral, electronic, or written.

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1.3 Policy/Procedure

PeriGen will limit all uses and disclosures of or requests for PHI to the minimum necessary to achieve the purpose of the use, disclosure or request, except for:

a. Disclosures to or requests by a healthcare provider for treatment purposes
b. Uses or disclosures made to an individual for his or her PHI
c. Uses or disclosures made pursuant to an authorization from an individual
d. Disclosures made to the Secretary of Health and Human Services
e. Uses or disclosures required by law
f. Uses or disclosures required for compliance with HIPAA

1.3.1 Internal uses

1. The Privacy & Security Officer will assess and determine, on a yearly basis, those Workforce Members who require access to PHI in order to carry out their job functions.
2. PeriGen will document its Workforce Members' access to PHI.
3. The Privacy & Security Officer will ensure that reasonable efforts are used to limit the access to the persons identified and for only the types of PHI, which are needed to carry out their job functions.
4. For PHI that PeriGen uses to perform certain management and administrative functions, PeriGen will limit all uses of PHI to the minimum necessary to achieve the purpose of the particular management or administrative function.

1.3.2 Disclosures

1. For any disclosure that PeriGen requests or makes on a routine and recurring basis, PeriGen will implement protocols that establish the minimum necessary amount of PHI that may be disclosed to achieve the purpose of the disclosure. On an annual basis, the Privacy & Security Officer will:
   a. Assess and determine all routine and recurring disclosures requested or made by PeriGen.
   b. Compose and complete a disclosure survey that identifies all routine and recurring disclosures.
   c. Assess and determine the types of PHI that are disclosed for the disclosures identified on the disclosure survey.
   d. For all recurring disclosures identified in the disclosure survey, the Privacy & Security Officer will document any parameters relevant to ensuring that the PHI disclosed will be limited to the amount reasonably necessary to achieve the purpose of the disclosure, but each disclosure does not require independent review by the Privacy & Security Officer.
2. For all disclosures not specifically listed on the annual disclosure survey, the disclosure request must be sent to the Privacy & Security Officer for review and determination for compliance with the minimum necessary standard.

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3. The following disclosures do not have to be reviewed by the Privacy & Security Officer for determination, and any such request will be deemed to be the minimum necessary for the requested disclosure:
   a. Disclosures made to public officials as required by or in accordance with the law, if the public official represents that the information requested is the minimum necessary for the stated purpose(s);
   b. A professional who is a Workforce Member or Business Associate who represents that the information requested is the minimum necessary for stated purposes and who requests the information for the purpose of providing professional services to the Facility; or
   c. Information requested by the Covered Entity for either treatment, payment, or healthcare operations purposes.

1.4 Administrative details

Responsibility: Privacy & Security Officer

Definitions: Covered Entity; ePHI; PHI

Regulatory Reference:

- 45 C.F.R. § 164.502(b), Uses and Disclosures of Protected Health Information: General Rules; Standard: Minimum Necessary
- 45 C.F.R. §164.514(d), Other Requirements Relating to Uses and Disclosures of PHI: Minimum Necessary Requirements

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2 De-identification of PHI

2.1 HIPAA Privacy Rule Language

"A covered entity may use protected health information to create information that is not individually identifiable health information or disclose protected health information only to a business associate for such purpose, whether or not the de-identified information is to be used by the covered entity.

Health information that meets the standard and implementation specifications for de-identification under § 164.514(a) and (b) is considered not to be individually identifiable health information, i.e., de-identified. The requirements of this subpart do not apply to information that has been deidentified in accordance with the applicable requirements of § 164.514, provided that: (i) disclosure of a code or other means of record identification designed to enable coded or otherwise de-identified information to be re-identified constitutes disclosure of protected health information; and (ii) if de-identified information is re-identified, a covered entity may use or disclose such reidentified data only as permitted or required by this subpart." 45 C.F.R. § 164.502(d).

Health information that does not identify an individual and with respect to which there is no reasonable basis to believe that the information can be used to identify an individual is not individually identifiable health information. 45 CFR § 164.514(a).

2.2 Purpose Statement

PeriGen may use and disclose an individual's health information that has been de-identified. After health information is de-identified, it is no longer subject to the requirements of the HIPAA Privacy Regulations.

2.3 Policy/Procedure

1. All de-identification of PHI will be performed at the direction and under the supervision of the Director of Quality and Regulatory or PeriGen's outside counsel in accordance with PeriGen's Covered Entity, if applicable.
2. The reason for the de-identification will be documented and maintained by the Director of Quality and Regulatory.
3. PeriGen may de-identify an individual's health information in either of the following ways:
    a. Removing each of the following 18 identifiers of the individual, or his/her relatives, employers or household members from the relevant document:
        i. Names
        ii. All geographic subdivisions smaller than a state, including street address, city, county, precinct, zip code, and their equivalent geocodes. The first three digits of a zip code may only be included in certain limited circumstances in accordance with 45 CFR 164.514.
        iii. All elements of dates (except year) for dates directly related to an individual, including birth date, admission date, discharge date, date of

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death, and all ages over 89 and all elements of dates (including year) indicative of such age, except that such ages and elements may be aggregated into a single category of age 90 or older. iv. Telephone numbers.

v. Fax numbers.

vi. Social Security numbers. vii. Electronic mail address.

viii. Medical record numbers.

vii. Health plan beneficiary numbers.

viii. Account numbers.

ix. Certificate/license numbers.

xii. Vehicle identifiers and serial numbers, including license plate numbers.

xiii. Device identifiers and serial numbers.

xiv. Web Universal Resource Locators (URLs).

xv. Internet Protocol (IP) address numbers.

xvi. Biometric identifiers, including finger and voiceprints.

xvii. Full face photographic images and any comparable images.

xviii. Any other unique identifying number, characteristic, or code, except for codes assigned to an individual but generated from information not related to the individual, as permitted for reidentification.

b. If any of the above 18 identifiers are not removed, PeriGen may utilize a qualified person to determine that the risk is very small that the information could be used, either by itself or in combination with other available information, by anticipated recipients to identify a subject of the information.

i. A "qualified person" is a person:

1. with appropriate knowledge and experience applying generally accepted statistical and scientific principles and methods for rendering information not individually identifiable;
2. who applies such methods and principles to determine that the risk is very small that the information could be used, alone or in combination with other reasonably available information, by an anticipated recipient to identify an individual who is a subject of the information; and
3. who documents the methods and results of the analysis that justify such determination.

4. No de-identified information will be disclosed if PeriGen has knowledge that the information could be used alone or in combination to identify a subject of the information. To the extent that PeriGen generates any permitted codes for reidentification of deidentified data, PeriGen will keep such codes confidential and limit access to only those Workforce Members who require such codes to fulfill their duties.

2.4 Administrative details

Responsibility: Privacy & Security Officer, Director of Quality and Regulatory

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Definitions: PHI

Regulatory Reference:

- ♦ 45 C.F.R. § 164.502(d); Standard: Uses and Disclosures of De-Identified Protected Health Information.
- ♦ 45 C.F.R. §164.514(a)-(c), De-Identification.

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3 Facsimiles

3.1 Purpose Statement

To protect the confidentiality and integrity of PHI under the HIPAA Privacy Regulations, all Workforce Members who fax PHI must use extreme caution to make sure that only the correct information is faxed and that the information is faxed to the proper party.

3.2 Policy/Procedure

1. Workforce Members must be aware of the fact that faxes can be intercepted and that faxes can be sent to the wrong party - either by misdialing or receiving an incorrect fax number from the intended recipient. Therefore, Workforce Members must adhere to the following procedures when faxing PHI:
   a. Limit faxing to urgent or non-routine incidents when other delivery options are not available, except in instances where faxing is required.
   b. Schedule a fax delivery time with the recipient to make sure that the fax is received by the intended recipient, and, if feasible, call the recipient within a reasonable time after submitting the fax to confirm that the intended recipient did receive the fax.
   c. All faxes must contain a cover sheet that does not disclose PHI.
2. Faxes sent to PeriGen Workforce Members will be delivered through a secure email service. With this delivery system, there would not be circumstances in which faxes would ever be printed out of the traditional fax machine.
3. All fax machines will be located in physically secure areas.

3.3 Administrative details

Responsibility: Privacy & Security Officer

Definitions: PHI; Workforce Member

Regulatory Reference:

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Signatures:

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